

ORS 97.745

Prohibited acts

- application
- notice

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- (1) Except as provided in ORS 97.750 (Permitted acts), no person shall willfully remove, mutilate, deface, injure or destroy any cairn, burial, human remains, funerary object, sacred object or object of cultural patrimony of any native Indian. Persons disturbing native Indian cairns or burials through inadvertence, including by construction, mining, logging or agricultural activity, shall at their own expense reinter the human remains or funerary object under the supervision of the appropriate Indian tribe.
- (2) Except as authorized by the appropriate Indian tribe, no person shall:
- (a) Possess any native Indian artifacts, human remains or funerary object having been taken from a native Indian cairn or burial in a manner other than that authorized under ORS 97.750 (Permitted acts).
- (b) Publicly display or exhibit any native Indian human remains, funerary object, sacred object or object of cultural patrimony.
- (c) Sell any native Indian artifacts, human remains or funerary object having been taken from a native Indian cairn or burial or sell any sacred object or object of cultural patrimony.
- (3) This section does not apply to:
- (a) The possession or sale of native Indian artifacts discovered in or taken from locations other than native Indian cairns or burials; **or**
- (b) Actions taken in the performance of official law enforcement duties.
- (4) Any discovered human remains suspected to be native Indian shall be reported to the state police, the State Historic Preservation Officer, the appropriate Indian tribe and the Commission on Indian Services. [1977 c.647 §2; 1979 c.420 §1; 1981 c.442 §4; 1985 c.198 §1; 1993 c.459 §10]

Location: https://oregon.public.law/statutes/ors_97.745